BOARD OF ZONING APPEALS
JUNE 26, 2017
MINUTES

Present: Mason Smith, chair, Barry Wolff, Bobby Carrier, Glyn Cowden, Joseph Belton, Stephen Duke.
Absent: Stephen Wood.
Staff: Michael Robertson, Lynnette Lynes

Mr. Smith called the meeting to order at 6:00 pm. and reviewed the procedures with the public. He administered the oath to those speaking.

1. Approval of Minutes

Mr. Duke moved for approval of the April minutes. Mr. Cowden seconded the motion. All in favor.

Mr. Wolff moved for approval of the May minutes. Mr. Duke seconded the motion. All in favor.

2. Public Comment and General Correspondence

There being no comments, Mr. Smith continued with the agenda.

3. Business

A. S-2-17, 1455 Wakendaw Rd., 559-00-00-099, Request for a Special Exception to allow a mobile classroom trailer in accordance with §156.326 C.3.g.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Lathan Carey, Head of Crowne Leadership Academy reviewed the request with the Board.

Mr. Wolff asked if only one additional mobile classroom would be installed. Mr. Carey answered in the affirmative.

Mr. Carrier asked about fire safety and emergency exits. Mr. Carey answered that there are adequate emergency exits. Mr. Carrier asked about water and sewer. Mr. Carey answered that they are within 200 feet of restrooms, so the mobile classrooms are not required to have bathroom facilities.

There being no comments, Mr. Smith closed the public comment.

Mr. Cowden moved for approval of the request based on the findings that all conditions have been met as outlined in staff comments. Mr. Carrier seconded the motion. All in favor.

B. S-3-17, 2161 Hwy 17N, 558-00-00-203, Request for a Special Exception to allow replacement of the originally approved site plan with a revised site plan in accordance with §156.413 C.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. William O'Neill, Seamon, Whiteside, and Associates, reviewed the request with the Board.

Mr. Duke asked if the buffers were changed. Mr. O'Neill answered in the negative and stated that the buffers would remain as was previously approved.

Mr. Wolff asked if the type or density of the buffer has changed. Mr. O'Neill answered in the negative and stated that it would be planted as thick and lush as possible. Mr. Wolff asked about the US17 buffer. Mr. O'Neill answered that it would be planted as thick as possible to ensure plant health and growth. He stated that more canopy trees would be planted.

Mr. John Kratz, 323 Bennett St, and representative for 2125, LLC, expressed concern that the staff report indicates the requested property is adjacent to the Baker Motor property, but this is not the case and would like the record to reflect this information. He stated that 2125, LLC owns a small portion of property between the Bake property and the requested property.

Mr. Robertson read correspondence from Mr. Edgar Barnard for the record (attachment 2).

Mr. Cowden asked if Mr. Barnard is a Town employee. Mr. Robertson answered in the negative.

There being no further comments, Mr. Smith closed the public hearing.

Mr. Wolff asked if there are any changes to the buffers. Mr. Smith answered in the negative, and suggested that if necessary, the buffer requirements can be reiterated.

Mr. Wolff moved for approval based on the findings included in the staff report, with emphasis that the US17 buffer should be planted as densely as possible without doing harm or causing future problems. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Cowden, Mr. Belton, Mr. Smith and Mr. Duke in favor; Mr. Carrier opposed.

C. V-18-17, 147 Hobcaw Drive, 514-06-00-056, Request for relief from the strict standards of §156.132 and 156.303 C to allow maintenance of existing nonconforming setbacks.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Pete Loy reviewed the request with the Board. He distributed a copy of the plat showing revised setback lines for the Board. He stated that while the setback lines have changed, the request has not. He stated that correspondence from several of the neighbors are in favor of the request.

Mr. Carrier asked if the extraordinary conditions are the setback requirements changing over the years. Mr. Loy answered that it is the fact that the setback requirements have changed over the years and after the home was built. Mr. Carrier asked if the requirements pertain to other property. Mr. Loy answered in the negative. Mr. Carrier asked if the property would be unusable if the variance is not granted. Mr. Loy answered that if the variance is not granted, a few of the historic trees on the property within the buildable area would be removed, which would be a detriment to the property and the neighborhood.

Ms. Melissa Delorme, owner, stated that the home has been in the family for many years. She stated that they would like to preserve the home and continue to have it as a tribute to her parents.

Mr. Max Sparwasser, 292 Bampfield, is in support of the request and the preservation of the trees.

Mr. Robertson read correspondence from Mr. Gary Schwab into the record (attachment 3).

There being no further comments, Mr. Smith closed the public comments.

Mr. Cowden commended the applicant for wanting to preserve the trees on the lot.

Mr. Smith concurred and suggested that this Board was established to grant variances in situations where the requirements have changed over the years. He stated that he would support the variance to preserve the trees and the home on the property.

Mr. Carrier moved for approval of the request based on findings that have met all criteria outlined by state as included in the staff comments and the application. Mr. Belton seconded the motion. All in favor.

D. S-4-17, 1475 Stuart Engals Blvd., 559-14-00-031, Request for a Special Exception to allow outdoor storage and display of rental vehicles in accordance with §156.326 C.5.m.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Shawn Barker reviewed the request with the Board.

Mr. Smith asked if only twelve trucks would be on site at one time. Mr. Barker answered that there might be occasions where more than twelve vehicles would be on site, but only for a limited amount of time or three or four hours. Mr. Smith asked if they were previously located on US17. Mr. Barker answered in the affirmative.

Mr. Ken Smith, owner of Carolina Cars, stated that the Walmart is located directly behind the property with a law firm and another office use on either side. He stated that the one resident to the rear is not opposed to the request. He stated that both sides of the property are heavily landscaped.

There being no further comments, Mr. Smith closed public comment.

Mr. Wolff asked about the buffer requirements. Mr. Robertson answered that the parking requirements must be met, which means 9x18 foot parking spaces, planting islands at the end of all parking aisles, and buffer along the property lines and showed this on the submitted site plan for the Board.

Mr. Barker noted that the site plan submitted to the Board at this meeting is to scale. Mr. Robertson answered that staff did not have the scaled site plan prior to the meeting.

Mr. Smith asked about the submitted site plan and if the parking near the building would be used for the truck rental spaces. Mr. Barker answered in the negative. Mr. Smith asked if there are two ingress/egress points. Mr. Barker answered in the affirmative. Mr. Smith asked the minimum widths for ingress/egress. Mr. Robertson answered that a typical two-way ingress/egress is a minimum of 24 feet. He stated that he was not sure the minimum requirements for a one-way ingress/egres. He stated that all zoning requirements should be met or a variance granted to allow the special exception. Mr. Smith suggested a deferral might be appropriate. Mr. Robertson answered that this could be done or conditions could be included in the motion or it could be deemed that this is a revised site plan to the 2008 special exception approval.

Mr. Wolff suggested that a scaled site plan should be submitted indicating compliance with all the zoning requirements.

Mr. Wolff moved for approval of the request subject to applicant submitting an updated site plan showing compliance with all zoning requirements. Mr. Duke seconded the motion. All in favor.

E. S-5-17, 1497 Mataoka St., 532-10-00-035, Request for a Special Exception to allow a Bed & Breakfast in accordance with §156.326 C.5.e.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Smith asked if there are any bed and breakfasts on this street. Mr. Robertson answered that he is not aware of any.

Mr. Wolff suggested that there are a couple of ADUs on the street, but he is not sure if these are utilized for short-term or long-term rentals.

Ms. Aleta Rieseberg, representative for the owner, reviewed the request with the Board (attachment 1).

Mr. Wolff asked if the garage portion would be used by the owner. Ms. Rieseberg answered that the garage portion would be not used for the owner's vehicles as there are separate driveways.

Mr. Shawn Barnes, 1418 Barba Street, suggested that a bed and breakfast is a commercial use. He expressed concern with child safety and potential noise pollution. He expressed concern that allowing this commercial use would allow additional commercial uses. He suggested that residential property should remain for residential use.

Ms. Sara Baker, owner, stated that there are several other properties within the neighborhood that rent their homes on a short-term basis. She stated that she does not desire to change the character of the neighborhood. She stated that in contacting her neighbors, they have indicated support of the request.

Mr. Robertson read correspondence from Ms. Robyn Meara for the Board (attachment 2).

There being no further comments, Mr. Smith closed the public comments.

Mr. Wolff stated that he does not agree that a bed and breakfast should always be allowed in a residential neighborhood, but suggested that all critera for the request has been met.

Mr. Wolff moved for approval of the request with the findings that they have met all the requirements as outlined by the state. Mr. Duke seconded the motion. All in favor.

F. 6. V-13-17, 280 Bampfield Drive, 514-08-00-123, Request for relief from the strict standards of §156.110 and §156.111 to allow after-the-fact approval for an accessory structure to encroach into the required six foot setbacks.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Smith asked if a variance for encroachment into the tree protection zone would be required. Mr. Robertson answered in the affirmative. Mr. Smith asked if this was advertised. Mr. Robertson answered in the negative and stated that because the tree protection zones were not included on the site plan. He stated that the request was previously deferred so that additional information could be provided on the trees and tree protection zones.

Mr. Daniel Bradley, applicant, reviewed the request with the Board. He distributed a petition signed by neighbors in favor of the request.

Mr. Smith suggested that the shed might encroach into the tree protection zone. Mr. Bradley answered that the shed is approximately 13 feet from the oak tree.

Mr. Robertson stated that the Zoning Administrator and plan reviewer indicated a permanent foundation would be required; however, the Building Official has indicated that a permanent foundation would not be required and would only require tie downs.

Ms. Coker, 508 Lackland Court, expressed concern with the significant trees on her property and that the location of the shed might be encroaching into the tree protection zones. She stated that if there are permanent footings required, the root systems would be compromised. She suggested that the close proximity of the shed to the property line and fence would make it difficult to maintain the shed. She asked that the request be denied.

Mr. Max Sparwasser, 292 Bampfield Drive, stated that a few of his neighbors have constructed sheds on their property. He suggested that this is a reasonable request and should be granted.

Mr. Austin Atkinson, 271 Bampfield Drive, stated that this is not an elevated house. He stated that there is a tree house on the rear of the property and suggested that the shed would not be more of a detriment than the tree house.

Mr. Sparky McFadden, 325 Hobcaw, stated that he is in favor of the request. He suggested that this is a tasteful addition to the neighborhood that would blend in with the surrounding neighborhood. He suggested that there are other sheds in the neighborhood as well.

There being no further comments, Mr. Smith closed the public comment.

Mr. Belton stated that his main concern was the location of the shed in relation to the significant trees and suggested that this information has been provided. He suggested that the lot does prohibit the location of the shed. He suggested that the requirements have been met.

Mr. Carrier asked if the shed is currently on concrete block. Mr. Duke answered in the affirmative. Mr. Carrier asked if the shed would match the main structure. Mr. Bradley answered in the affirmative.

Mr. Smith suggested that not having the shed would not necessarily prohibit the use of the property.

Mr. Belton suggested that the construction of the shed would not be a detriment to the neighborhood. He suggested that the location of the shed in regard to the tree and maintaining a backyard for child play to provide better child safety is appropriate.

Mr. Belton moved for approval of the request based on the findings included in the application and staff comments, and the testimony received at this meeting, that the criteria has been met. Mr. Duke seconded the motion. Motion failed on a 3 to 3 vote with Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Wolff, Mr. Carrier, and Mr. Smith opposed.

Mr. Smith and Mr. Wolff stated that the utilization of the property is not prohibited if the variance is not granted.

Mr. Cowden suggested that the need for the property use has changed because of having children and the need for a safe play environment.

Mr. Wolff suggested that the evidence is not sufficient to grant the variance.

Mr. Smith stated that although there might be sympathy for the request, the criteria is not met.

Mr. Belton suggested that where the shed could be located is limited.

Mr. Cowden suggested that it is a temporary structure and can be moved.

Mr. Wolff stated that it must be tied down, so it would not be able to be easily moved.

Mr. Smith asked what would require a permanent foundation. Mr. Robertson answered that he is not familiar with the building code. Mr. Smith suggested that granting the variance would set a precedent.

Mr. Belton suggested that placing the shed within the setbacks would restrict the amount of open space. He stated that another mitigating factor is that there is evidence from an arborist that a different location could endanger the oak tree.

Mr. Belton moved for approval of the request based on the evidence submitted, staff comments, and the application submitted; because of the shape of the lot and placement of the trees, the location of the shed is appropriate and if moved within the required setback, the property would be unreasonably restricted. Based on all of these findings, the variance should be granted. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Cowden, Mr. Belton, Mr. Smith, and Mr. Duke in favor; Mr. Carrier opposed.

G. 7. V-19-17, 4269 Coolidge St., WITHDRAWN BY APPLICANT 600-01-00-908, Request for relief from the strict standards of §156.111 A.1-2 to allow the construction of a pool within the required six foot side setback for an accessory structure and to allow the accessory structure to be closer than 15 feet to the primary structure on the adjacent property.

This request was withdrawn by the applicant.

4. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:24 pm.

Submitted by,
L. Lynes
BOZA06262017